

# Clinical Officer Terms of Service

*Terms governing Clinical Officer access to and use of the AfyaWork platform*

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## 1. Introduction and Acceptance

These Terms of Service ("Terms") constitute a legally binding agreement between you ("Clinical Officer", "CO", "you") and AfyaWork ("AfyaWork", "we", "us", "our"), the operator of the AfyaWork digital healthcare workforce platform accessible at [afyawork.com](https://afyawork.com) ("Platform").

By registering for an account, accessing, or using the Platform, you confirm that you have read, understood, and agree to be bound by these Terms. If you do not agree, you must not use the Platform.

These Terms apply in addition to any other agreement you enter into with AfyaWork, including the Independent Contractor Agreement.

## 2. Definitions

|                            |                                                                                                                                                  |
|----------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>"Platform"</b>          | The AfyaWork website, mobile application, and all associated services at <a href="https://afyawork.com">afyawork.com</a> .                       |
| <b>"Shift"</b>             | A defined locum work engagement posted by a Facility on the Platform, specifying a date, shift type, and agreed pay amount.                      |
| <b>"Facility"</b>          | A registered healthcare provider (clinic, hospital, dispensary, or diagnostic centre) that posts Shifts on the Platform.                         |
| <b>"CO Pay"</b>            | The flat-rate payment agreed between the Facility and AfyaWork for a Shift, payable to the Clinical Officer upon completion.                     |
| <b>"Platform Fee"</b>      | The fee charged by AfyaWork to Facilities, calculated as a percentage of the CO Pay.                                                             |
| <b>"Subscription Tier"</b> | The access level (Msingi, Daktari, or Bingwa) governing shift visibility and platform features available to the Clinical Officer.                |
| <b>"Completion"</b>        | A Shift that has been worked by an approved CO, with check-in and check-out confirmed by the Facility and approved by an AfyaWork administrator. |

## 3. Eligibility and Registration

### 3.1 Eligibility

To register as a Clinical Officer on the Platform, you must:

- Hold a valid Clinical Officer licence issued by the Tanzania Medical and Dental Council (TMDC) or the Medical Council of Tanganyika, as applicable;
- Be at least 18 years of age;
- Have the legal right to work in Tanzania; and
- Not have been previously suspended or banned from the Platform.

## 3.2 Account Registration

You must provide accurate, current, and complete information at registration, including your full legal name, email address, licence number, and specialization. You are responsible for maintaining the accuracy of this information. AfyaWork reserves the right to verify your licence at any time and to suspend your account if verification fails.

## 3.3 Account Security

You are solely responsible for maintaining the confidentiality of your account credentials. You must notify AfyaWork immediately at [support@afyawork.com](mailto:support@afyawork.com) if you suspect unauthorized access to your account. AfyaWork shall not be liable for any loss arising from unauthorized use of your account.

# 4. Platform Use

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## 4.1 Licence

Subject to these Terms, AfyaWork grants you a limited, non-exclusive, non-transferable, revocable licence to access and use the Platform for the purpose of finding and applying for locum Shifts.

## 4.2 Prohibited Conduct

You must not:

- Provide false, misleading, or fraudulent information at any time;
- Apply for a Shift you are not qualified or licensed to perform;
- Arrange Shifts, payments, or engagements with Facilities outside the Platform;
- Share your account credentials with any third party;
- Scrape, copy, or systematically extract data from the Platform;
- Use the Platform for any purpose other than finding legitimate locum work; or
- Engage in any conduct that damages the reputation of AfyaWork or any Facility.

# 5. Shift Applications and Professional Conduct

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## 5.1 Applying for Shifts

You may apply for any open Shift matching your specialization. Only one Clinical Officer is approved per Shift. Approval of your application by a Facility constitutes a binding commitment on your part to attend and complete the Shift as described.

## 5.2 Attendance

You must arrive at the Facility on time and ready to work. If you are unable to attend a confirmed Shift for any reason, you must notify the Facility through the Platform as soon as possible. Failure to attend without reasonable prior notice ("no-show") may result in account suspension.

## 5.3 Professional Standards

While on Shift, you must:

- Comply with all applicable Tanzanian laws and medical regulations;
- Follow the Facility's operational protocols and instructions from senior staff;
- Maintain professional conduct and treat all patients, staff, and Facility personnel with respect;
- Maintain patient confidentiality in accordance with applicable law; and
- Report any clinical incidents or concerns to the Facility's designated officer.

## 5.4 Cancellation

If you need to cancel a confirmed Shift, you must do so through the Platform with as much notice as possible. Repeated late cancellations or no-shows may result in warnings, reduced Platform access, or permanent account termination at AfyaWork's discretion.

# 6. Payment Terms

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## 6.1 CO Pay

For each completed Shift, you will receive the CO Pay amount set by the Facility at the time the Shift was posted. The CO Pay is a flat rate and is not subject to reduction if you work fewer hours than the scheduled shift duration (subject to clause 6.2).

## 6.2 Overtime

If the time approved by an AfyaWork administrator for a Shift exceeds the scheduled shift duration by 60 or more minutes, you will receive additional overtime pay calculated at the applicable overtime rate per hour as set by AfyaWork from time to time (currently TZS 5,000 per hour). Overtime pay is calculated on the excess minutes only.

## 6.3 Payment Method

Payments are made exclusively via mobile money to the number registered on your Profile. Supported providers include M-Pesa (Vodacom), Mixx by Yas (Tigo), Airtel Money, and Halopesa. You are responsible for maintaining accurate and current mobile money details on your Profile. AfyaWork accepts no liability for failed or delayed payments resulting from incorrect details.

## 6.4 Payment Timeline

Following Shift completion and administrator approval, AfyaWork will process your payment within a reasonable time. AfyaWork does not guarantee same-day or next-day disbursement. Payments may be delayed for administrative, technical, or compliance reasons.

## 6.5 Taxes

You are solely responsible for declaring and paying all applicable taxes on amounts received through the Platform, including income tax and any self-employment levies under the laws of Tanzania. AfyaWork does not withhold tax on CO payments and will not provide tax advice.

## 6.6 Disputes

Any payment dispute must be raised with AfyaWork by email to [support@afyawork.com](mailto:support@afyawork.com) within 14 days of the relevant payment date or expected payment date. AfyaWork will investigate and respond within 10 business days.

## 7. Subscription Tiers

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AfyaWork offers the following subscription tiers:

|                |                                                                                                                     |
|----------------|---------------------------------------------------------------------------------------------------------------------|
| <b>Msingi</b>  | Free tier. Standard shift visibility — new shifts are visible 30 minutes after they become available to paid tiers. |
| <b>Daktari</b> | TZS 15,000 per month. Priority access — new shifts are visible 30 minutes earlier than the Msingi tier.             |
| <b>Bingwa</b>  | TZS 30,000 per month. First access to emergency shifts and a Verified badge displayed on your profile.              |

Subscription fees are payable in advance. AfyaWork reserves the right to modify tier pricing or benefits with 30 days' notice. Tier upgrades and downgrades take effect at the start of the next billing cycle.

## 8. Suspension and Termination

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### 8.1 By AfyaWork

AfyaWork may suspend or permanently terminate your account at any time, with or without notice, if:

- You breach any provision of these Terms;
- Your clinical licence is suspended, revoked, or expires;
- You engage in fraudulent, dishonest, or abusive conduct on the Platform;
- You accumulate repeated no-shows or late cancellations; or
- AfyaWork reasonably believes that continued access poses a risk to patients, Facilities, or the Platform.

### 8.2 By You

You may close your account at any time by contacting AfyaWork at [support@afyawork.com](mailto:support@afyawork.com). Termination does not affect any outstanding payment obligations or any Shift already confirmed.

### 8.3 Effect of Termination

Upon termination, your licence to access the Platform immediately ceases. Any outstanding payments due to you for completed Shifts will be processed in the ordinary course. AfyaWork may retain your data in accordance with its Privacy Policy and applicable law.

## 9. Intellectual Property

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All content, software, and materials on the Platform are the property of AfyaWork or its licensors. You are not granted any right to copy, reproduce, modify, or distribute any Platform content. Any feedback or suggestions you provide to AfyaWork may be used by AfyaWork without obligation to you.

## 10. Limitation of Liability

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### 10.1 Platform Provided "As Is"

The Platform is provided on an "as is" and "as available" basis. AfyaWork does not warrant that the Platform will be uninterrupted, error-free, or free from harmful components.

### 10.2 No Employment Relationship

AfyaWork is a technology platform that facilitates introductions between Clinical Officers and Facilities. AfyaWork is not your employer and does not direct or control your clinical work. AfyaWork is not responsible for any clinical decisions, patient outcomes, or workplace injuries arising during a Shift.

### 10.3 Limitation

To the maximum extent permitted by applicable law, AfyaWork's total liability to you for any claim arising out of or in connection with these Terms or the Platform shall not exceed the total CO Pay disbursed to you in the 3 months immediately preceding the event giving rise to the claim.

## 11. Indemnification

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You agree to indemnify, defend, and hold harmless AfyaWork, its officers, employees, and agents from and against any claims, losses, damages, and costs (including legal fees) arising from: (a) your use of the Platform; (b) your breach of these Terms; (c) your clinical conduct during a Shift; or (d) any claim by a third party arising from your actions or omissions while on a Shift.

## 12. Privacy

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AfyaWork processes your personal data in accordance with its Privacy Policy available at [afyawork.com/privacy](https://afyawork.com/privacy). By using the Platform, you consent to such processing.

## 13. Amendments

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AfyaWork may update these Terms at any time. Where changes are material, AfyaWork will notify you by email or in-app notification with at least 14 days' notice before the changes take effect. Your continued use of the Platform after the effective date constitutes acceptance of the revised Terms.

## 14. Governing Law and Dispute Resolution

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These Terms are governed by and construed in accordance with the laws of the United Republic of Tanzania. Any dispute arising out of or in connection with these Terms shall first be referred to AfyaWork's support team for informal resolution. If unresolved within 30 days, the dispute shall be referred to the courts of Tanzania with jurisdiction in Dar es Salaam.

## 15. General

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If any provision of these Terms is found to be unlawful or unenforceable, that provision shall be severed and the remaining Terms shall continue in full force. The failure of AfyaWork to enforce any provision shall not constitute a waiver. These Terms constitute the entire agreement between you and AfyaWork in respect of your use of the Platform as a Clinical Officer.

*These Terms were last updated in May 2026. Please contact [support@afyawork.com](mailto:support@afyawork.com) with any questions.*